# 25VECV01769 25VECV01769

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-18

Motion: PLAINTIFF’S MOTION TO TAX COSTS

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Case Number: 25VECV01769 Hearing Date: August 18, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

DRAKE LAW FIRM,

Plaintiff,

vs.

BRIAN DEAVER; DOES 1 TO 50.

Defendants.

CASE NO: 25VECV01769

[TENTATIVE]

ORDER RE:

PLAINTIFF’S

MOTION TO TAX COSTS

Dept. W

8:30 a.m.

August 18, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's Motion to Tax in the total amount of $9,094.04.

Background

This case arises from the fallout of a recent personal injury lawsuit. Plaintiff is Drake Law Firm, and Defendant is Brian Deaver. Plaintiff represented Defendant after he was injured in a car accident. In 2023, Defendant entered into a consumer purchase agreement. In exchange for $142,590.15, Defendant agreed to give non-party Cartiga Consumer Funding, LLC an interest in the proceeds of the personal injury suit. Plaintiff was a co-signer on this agreement.

In early 2024, Defendant's case settled for $1,000,000. Plaintiff properly disbursed these funds to Defendant. However, Plaintiff alleges that Defendant failed to pay Cartiga Consumer Funding their portions of the proceeds. Thus, as co-signer, Plaintiff is now on the hook to Cartiga for their interest in the settlement – approximately $295,825.79.

On March 28, 2025, Plaintiff brought suit against Defendant to enforce this consumer purchase agreement. Plaintiff alleges two causes of action: breach of contract and conversion.

On April 14, 2026, Plaintiff filed a request for dismissal without prejudice. It is unclear what precipitated this dismissal.

On April 21, 2026, Defendant filed a memorandum of costs, requesting $9,214.04 in costs.

Now, Plaintiff moves to tax $9,094.04 of Defendant's requested costs.

Discussion

Plaintiff moves pursuant to CRC 3.1700(b) to strike $9,094.04 of Defendant's $9,214.04 requested costs. (Mot. to Tax, p. 4:20-23.)

While Plaintiff raises multiple arguments in favor of taxing these deposition costs, the Court's primary concern is that Defendant provides no evidence or receipts that support this number. While deposition costs are generally considered recoverable under CCP 1033.5(a)(3)(A), recoverable costs are still limited to those "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Garcia v. Tempur-Pedic N. Am., LLC (2025) 98 Cal.App.5th 819, 824.) Here, Defendant's memorandum of costs requests $9,094.04 for "deposition costs". (Memorandum of Costs, p. 1.) Crucially, the memorandum of costs contains no other explanation or evidence that these costs were incurred. (Ibid.)

For instance, Defendant's memo does not explain who was being deposed, when they were deposed, how they were deposed, and what caused the depositions to cost so much money. (See generally, Memorandum of Costs.) Based on the history of this case, these costs are likely related to the depositions of Benjamin Drake and Jason Cohen that were the subject of multiple discovery motions in 2025. Plaintiff took these depositions on September 17, and September 25, 2025. (Mot. to Tax, p. 5:10-11.) However, even though the Court can identify the subject of these depositions, the Court still has no way to evaluate the reasonableness of these costs to the litigation itself. This is especially important given how much Defendant requests. More than $9,000 in costs for two depositions strikes this Court as excessive. Thus, proper documentation showing that these costs were reasonably incurred is crucial.

In Opposition,
Defendant proports to remedy this evidentiary issue. Specifically, Defendant cites to "Exhibit 1" from the newly supplied declaration of Gurman Bal, Defendant's attorney. (Opp. p. 4:12-15.) Unfortunately, the Exhibit 1 Defendant filed with this Court is blank. (See, Opp. Bal Decl. Ex. 1.) Thus, the Court still has no specific documentation to work with.

Based on the Reply,
Plaintiff makes references to Exhibit 1 and attached invoices. (Reply, p. 4:8-18.) Thus, it appears as though they received a version of this declaration with the exhibits properly attached. However, Plaintiff also raises multiple serious issues with these requests, such as an invoice for $1,186.19 in late fees incurred by Defendant. This suggests that there are serious problems with Defendant's request, even assuming that these invoices could be properly provided.

Given that Defendant has twice failed to provide support for their substantial request for costs, the Court's tentative opinion is to GRANT this Motion to Tax in the total amount of $9,094.04. Alternatively, if the Court is convinced at the hearing that a continuation is appropriate, the Court may elect to continue this motion and allow for either supplemental briefing, or a refiling of Defendant's initial Opposition.

Conclusion

The Court GRANTS Plaintiff's Motion to Tax in the total amount of $9,094.04.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

August 18, 2026

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Judge of the Superior Court